

Given the above, the Motion is **GRANTED as to Plaintiff's request to mandate the preservation of all financial records** of Blue Gum Warehouse, LLC, Peakland Management Anaheim, Inc., and Peakland Warehouse 1315, Inc., and **requiring Defendants to maintain and not destroy, alter, conceal, or transfer any books, records, bank statements, ledgers, leases, or other financial documents** relating to Blue Gum Warehouse, LLC.

The Motion is **DENIED WITHOUT PREJUDICE** as to the other requests.

Plaintiff's requests for judicial notice are **GRANTED**.

Defendants to give notice.

7. 30-2023-01351358

**Kirstein vs. Laguna
Beach Unified School
District**

1. Motion to Compel Deposition (Oral or Written)

Plaintiff Brad Kirstein seeks an order compelling the deposition of Defendants James Ray Taylor and Taylor Tennis Courts, Inc.'s designated expert, Bryan Randles. The motion is **GRANTED**.

Defendants do not deny that Plaintiff is entitled to depose their expert. However, they contend that Plaintiff's motion was filed too late because this Court's 2/23/26 order continuing the trial date stated that "All Discovery and Expert related dates are to remain closed except for the outstanding IMEs and Expert Depositions. Trial related dates only, shall flow from the new trial date." (ROA 79.)

Defendants (whose opposition to this motion was not timely filed) contend that, while this Court authorized Plaintiff to depose experts after the trial date was continued, the Court did not extend the deadline to compel Defendants to produce their experts. This argument is not well taken.

Plaintiff has submitted evidence that he initially served a deposition notice for Randles' deposition on 1/29/26. (Buus Decl. ¶ 3, Exh. 2.) Defendants objected on 2/4/26. (Buus Decl. ¶ 4.) On 2/23/26, this Court continued the trial date to 8/31/26. After attempting to meet and confer on a deposition date over the course of several months, with no dates proffered by Defendants, Plaintiff's counsel served an Amended Deposition Notice on 4/27/26, with a deposition date of 6/1/26. (Buus Decl. ¶ 9, Exh. 8.) On 5/27/26, Defendants' counsel served objections to the amended notice. (Buus Decl. ¶ 10.) Plaintiff filed this motion on 6/18/26.

The timeline set forth above evidences that, rather than providing their expert for deposition—which they do not deny Plaintiff is entitled to—Defendants seemingly have attempted to run out the clock so that Plaintiff does not have time to depose their expert.

While Defendants state that they are now willing to produce their expert for deposition, and have provided one date on which he is available, the Court finds that an order compelling the deposition is still necessary.

Accordingly, Defendants are **ORDERED to produce their expert, Bryan Randles, for his deposition within 10 days of this order.**

Additionally, sanctions of \$1,042.50 (1.5 hrs at \$695/hr) are issued against Defendants James Ray Taylor and Taylor Tennis Courts, Inc., jointly and severally. Sanctions are due and payable to Plaintiff's counsel within 30 days of this order. (CCP §§2034.410; 2025.450(g)(1).)

Plaintiff to give notice.